

Instructions for Requests to Prohibit Remote Public Access to a Defendant's Electronic Court Case Records in a Criminal Case – Dismissed or Acquitted

Important! Read Before Using this Packet of Forms.

ND Legal Self Help staff and court employees **can't** help you fill out the form(s). If you're unsure if these forms and instructions suit your circumstances, consult a lawyer.

ND Legal Self Help Center forms **aren't** official court forms. Judges and courts aren't required to accept them. There's no guarantee Center forms will be accepted. Use at your own risk.

If you need legal advice or legal representation, consult a lawyer licensed to practice in North Dakota. Go to ndcourts.gov/legal-self-help/finding-a-lawyer for information about finding a lawyer to represent you.

When you represent yourself, you're expected to know and follow the law, including:

- State or federal laws that apply to your case;
- Case law, also called court opinions, that applies to your case; and
- Court rules that apply to your case, which may include:
 - North Dakota Rules of Civil Procedure;
 - North Dakota Rules of Court;
 - North Dakota Rules of Evidence;
 - North Dakota Administrative Rules and Orders; and
 - Any local court rules.

Links to the state laws, case law, and court rules can be found at ndcourts.gov.

A glossary with definitions of legal terms is available at ndcourts.gov/legal-self-help.

When you represent yourself, you're held to the same requirements and responsibilities as a lawyer, even if you don't understand the rules or procedures.

*These instructions and forms **aren't** a complete statement of the law. They cover the basic process to motion a North Dakota state district court to prohibit remote public access to a Defendant's electronic court case record because the criminal charges were dismissed or the Defendant was acquitted. There's no guarantee that all judges and courts will accept forms available through the ND Legal Self Help Center. The Center isn't responsible for any consequences that may result from the forms or information provided. Use these forms and instructions at your own risk.*

No Assistance with Court Process in Criminal Cases

The ND Legal Self Help Center gives information about the court process in **civil** cases **only**.

The ND Legal Self Help Center **can't** give assistance with court process in **criminal cases** and **doesn't** have expertise available in this area.

Who May Use this Packet of Forms?

1. An individual charged with a criminal offense (*also called the Defendant*) **and**:
 - a. The charges were dismissed; **or**
 - b. The individual was acquitted;

and

2. The individual wants to ask a North Dakota state district court to prohibit remote public access to all of the electronic case records in their criminal case.

Caution! A self-represented individual may only represent themselves when using this packet of forms. An individual can perform the functions of a lawyer for themselves at their own risk. This is called legal self-representation.

- An individual **can't** delegate legal self-representation to a non-lawyer. Legal documents signed by a non-lawyer on behalf of a self-represented individual are considered void.

What Happens if the Court Prohibits Remote Public Access to the Electronic Case Records in My Criminal Case?

If the judge or judicial referee assigned to your criminal case decides you meet the requirements, the judge or judicial referee signs an Order.

The order prohibits access to the listing of records and events in your criminal case at ndcourts.gov. "Internet Access Prohibited under N.D.Sup.Ct.AdminR.41" is displayed in place of the listing of records and events.

Your criminal case is still searchable at ndcourts.gov/public-access, and the records in your case still available by in-person request at the courthouse.

This Packet of Forms **Doesn't** Delete (Expunge) or Seal Your Criminal Records

This packet of forms **doesn't** result in all of the records being deleted (expunged) in the criminal case.

This packet of forms also **doesn't** result in sealing all of the records in the criminal case. (*When criminal records are sealed, disclosure of the existence or content of the records is prohibited.*)

- To research expungement and sealing criminal record options in North Dakota, go to [Expungement](#) and [Sealing Criminal Records](#).

What Rules Do I Need to Know to Use this Packet of Forms?

[Rule 41, Section 4\(a\) of the North Dakota Supreme Court Administrative Rules](#) includes the requirements for requests to prohibit public access to a Defendant's court record in a criminal case in North Dakota.

- Rule 41, Section 4(a)(7) includes the requirements for requests to prohibit access to electronic court case records when a Defendant's criminal charges were dismissed or the Defendant was acquitted in the criminal case.

[Rule 47 of the North Dakota Rules of Criminal Procedure](#) includes requirements for making Motions in a criminal case in North Dakota.

[Rule 3.2 of the North Dakota Rule of Court](#) also includes requirements for Motions in a criminal case in North Dakota.

[Rule 3.4 of the North Dakota Rules of Court](#) applies to protecting information in documents filed in North Dakota state district court cases.

Forms in this Packet

1. Notice of Motion to Prohibit Public Access to Records
2. Motion to Prohibit Public Access to Records
3. Brief in Support of Motion to Prohibit Public Access
4. Declaration in Support of Motion to Prohibit Public Access

5. Findings of Fact, Conclusions of Law, and Order on Motion to Prohibit Public Access (*proposed*)
6. Confidential Information Form
7. Declaration of Service by Mail
8. Declaration of Office Service

Before Completing and Signing the Forms

Review the forms carefully and decide if the forms apply to your situation. If you don't know if you should use these forms, consult a lawyer who is licensed to practice in North Dakota **and** can agree to represent you.

When you sign the forms, your signature tells the Court that you:

- Made reasonable inquiries about the Motion requirements; **and**
- Based on your inquiries, to the best of your knowledge, information, and belief:
 - You're not presenting the Motion for any improper purpose, such as to harass, cause unnecessary delay, or needlessly increase the cost of litigation;
 - The claims, defenses, and other legal contentions in the Motion are warranted by existing law or by a non-frivolous argument for extending, modifying, or reversing existing law or for establishing new law;
 - The facts you present in the Motion are supported by evidence or will likely have evidentiary support after a reasonable opportunity for further investigation or discovery; and
 - Denials of any facts in the Motion are warranted on the evidence or are reasonably based on belief or a lack of information.

See [North Dakota Rules of Civil Procedure Rule 11](#) for signature requirements, representations to the Court, and sanctions for motions and other documents presented to a Court.

Including Protected Information When You Fill Out the Forms

When you file this Motion with the North Dakota State District Court, all documents, **except the Confidential Information Form, are available to the public to view.**

Court case records are generally available to the public, and anyone can request to look in almost any court file. However, certain information is protected and required to remain confidential, even if the protected information is part of a public court case record.

Protected Information is:

- Social Security Numbers.
- Taxpayer Identification Numbers.
- Birthdates.
- Minor child's name.
- Financial account numbers.
- Victim contact information in a criminal or delinquency case, **if the victim requests.**
 - Victim contact information means any information that would allow someone to make contact. Contact information includes, but isn't limited to, names, addresses, phone numbers, email addresses, or places of employment.

You may need to refer to Protected Information when you fill out the forms. When you refer to Protected Information, write or type only:

- The last four (4) digits of the social security number and taxpayer identification number.
- The year of birth.
- The minor child's initials.
- The last four (4) digits of the financial-account number.
- "Victim contact information" to refer to victim contact information in a criminal or delinquency case.

The district court still needs to have access to the full Protected Information. Complete the Confidential Information Form with the full Protected Information you reference in the rest of the forms.

The Confidential Information Form is filed as a confidential document and isn't available to the public to view.

If Your Request to Prohibit Public Access is Granted

If the North Dakota State District Court grants your request to prohibit remote public access to your electronic court case records in your criminal case, people can still search publically available court records by your name or case number at ndcourts.gov/public-access.

The public search results will look similar to this:

Criminal Case Records Search Results					
Skip to Main Content Logout My Account Search Menu New Criminal Search Refine Search				Location : State of North Dakota Help	
Record Count: 1					
Search By: Defendant Exact Name: on Party Search Mode: Name Last Name: Doe First Name: Jon Middle Name: Alan All All Sort By: Filed Date					
Case Number	Citation Number	Defendant Info	Filed/Location/Judicial Officer	Type/Status	Charge(s)
 09-2013-CR-0000				Internet Access is Prohibited under N.D. Supreme Court Admin. Rule 41 - For more information see www.ndcourts.gov/ar41.htm	

After clicking on the Case Number, the Register of Actions for your case(s) will look similar to this:

Skip to Main Content Logout My Account Search Menu New Criminal Search Refine Search Back				Location : State of North Dakota Help	
REGISTER OF ACTIONS					
PARTY INFORMATION					
Defendant	Doe Jon Alan New London, MN 56273	DOB: 1980			
Plaintiff	State of North Dakota				
Internet Access is Prohibited under N.D. Supreme Court Admin. Rule 41 - For more information see www.ndcourts.gov/ar41.htm					

The listing of case records and events in your case is replaced with “**Internet Access is Prohibited under N.D. Supreme Court Admin. Rule 41 – For more information see www.ndcourts.gov/legal-resources/rules/ndsuptadminr/41.**”

Definitions

The following definitions are intended to be helpful, but they aren’t intended to include every possible meaning of the terms in this section.

Case Records – Under Rule 41 of the North Dakota Supreme Court Administrative Rules, case records are records relating to a particular judicial proceeding, including an index, calendar, docket, register of actions, official record of the proceeding, order, decree, judgment or minute order.

Defendant – The party in a criminal case who was charged with a criminal offense. To use this packet of forms, the Defendant must have been acquitted or the charges dismissed.

District Court Judge – An elected government official who hears and decides civil and criminal cases.

Judicial Referee – A judicial officer, appointed by the presiding District Court Judge. The findings and order of the Judicial Referee have the same effect as the findings and order of a District Court Judge until superseded by a written order of a District Court Judge. ([See Rule 13 of the North Dakota Supreme Court Administrative Rules.](#))

Moving party – The person bringing the Motion to Prohibit Public Access to court case records. In other words, the individual who completes and signs the forms in this packet. The moving party for this forms set is the Defendant.

Plaintiff – In criminal cases, the Plaintiff is the government. For the purposes of this form set, the government is the State of North Dakota. Generally, States Attorneys represent the State of North Dakota in criminal cases.

Opposing party: The other parties in the court case. In other words, the parties who didn't bring the Motion. (Also called the Non-moving party.)

Protected Information – Under Rule 3.4 of the North Dakota Rules of Court, the following is protected information in documents filed in North Dakota state court cases:

- Social Security Number.
 - **Only** the last 4 digits appear in the document.
- Taxpayer Identification Number.
 - **Only** the last 4 digits appear in the document.
- Birthdate.
 - **Only** the year of birth appears in the document.
- Minor child's name.
 - **Only** the minor child's initials appear in the document.
- Financial account number.
 - **Only** the last 4 digits appear in the document.
- Victim contact information in a criminal or delinquency case, **if the victim requests.**
 - Victim contact information means any information that would allow someone to make contact. Contact information includes, but isn't limited to, names, addresses, phone numbers, email addresses, or places of employment.

Record – Under Rule 41 of the North Dakota Supreme Court Administrative Rules, record means recorded information of any kind, regardless of the physical form or characteristic by which the information is stored, recorded, or reproduced, which is in the possession or custody

of a court of North Dakota and which has been received or prepared for use in connection with public business or contains information relating to public business.

“Record” doesn’t include unrecorded thought processes or mental impressions, but does include preliminary drafts and working papers. “Record” doesn’t include records that have been disposed of under court records management rules, or records to which a court has access but which are not a part of the court records.

Victim – A person who suffers direct or threatened physical, psychological, or financial harm as a result of the commission or attempted commission of a crime or delinquent act or against whom the crime or delinquent act is committed. The term "victim" doesn’t include the accused or a person whom the court finds wouldn’t act in the best interests of a deceased, incompetent, minor, or incapacitated victim.

Steps to Prepare, Serve and File the Forms in the Packet

STEP 1: You, the Defendant, Prepare the Forms

Notice of Motion to Prohibit Public Access to Records

This is the required written notice to the party that prosecuted the criminal case.

- **Top of Form (Caption)**
 - Enter the county and judicial district from the criminal case.
 - Fill in your name as Defendant in the criminal case.
 - Enter the criminal case number.
- **Date and Signature**
 - Date and sign the form.
 - Complete the lines following your signature.

Motion to Prohibit Public Access to Records

This is the required written request to the Court to prohibit remote public access to the electronic court records in the criminal case(s).

- **Top of Form (Caption)**
 - Fill in the Caption exactly as you filled the Caption for the Notice of Motion.

- **Date and Signature**

- Date and sign the form.
- Complete the lines following your signature.

Brief in Support of Motion to Prohibit Public Access

This is the required written document that explains why you, the Defendant, should have the Motion granted. A Brief takes the relevant laws or rules and applies them to the facts of your particular situation.

- **Top of Form (Caption)**

- Fill in the Caption exactly as you filled the Caption for the Notice of Motion.

- **Complete Paragraphs 1 through 13 of the Brief.**

- **Date and Signature**

- Date and sign the form.
- Complete the lines following your signature.

Declaration in Support of Motion to Prohibit Public Access

This is your required written statement of fact. The Declaration must be dated and signed by you, the Defendant.

- **Top of Form (Caption)**

- Fill in the Caption exactly as you filled the Caption for the Notice of Motion.

- **Complete Paragraphs 1 through 7 of the Declaration.**

- **Date and Signature**

- Date and sign the form.
- Complete the lines following your signature.

Findings of Fact, Conclusions of Law, and Order on Motion to Prohibit Public Access

This is your **proposed** Findings of Fact, Conclusions of Law, and Order on Motion to Prohibit Public Access. The Judge or Judicial Referee assigned to your request decides whether to grant your request. The Judge or Judicial Referee also decides whether to use this document.

The **Findings of Fact** are the Judge's or Judicial Referee's written determination of the facts made from the evidence presented in the motion. This explains what facts they found to be true.

The **Conclusions of Law** are the rulings of law made by the Judge or Judicial Referee based on, or in connection with, the Findings of Fact. These are the legal consequences of the facts they found to be true.

The **Order** is your **proposed** Order the Judge or Judicial Referee may sign to prohibit remote public access to your electronic criminal case records.

- **Top of Form (Caption)**
 - Fill in the Caption exactly as you filled the Caption for the Notice of Motion.
- **Leave the Rest of the Form Blank**
 - If the Judge or Judicial Referee uses this form as their Findings of Fact, Conclusions of Law, and Order, the Judge or Judicial Referee completes and signs the form.

Confidential Information Form

This form lists the full protected information that isn't allowed to appear in other documents filed with the court. This form is a part of the court record that isn't seen by the public.

See the "Including Protected Information When you Fill Out the Forms" section on Page 4, and the definition of "Protected Information" on Page 7.

- **Top of Form (Caption)**
 - Fill in the Caption exactly as you filled in the Caption for the Notice of Motion.
- **Fill in all applicable sections of the form**
- **Date and Signature**
 - Date and sign the form.
 - Complete the lines following the signature line.

STEP 2: You, the Defendant, Arrange for Service of Copies of the Completed Forms

Before the Court can act on your Motion, you must serve a copy of the following completed forms and any exhibits on all parties in the criminal case:

- Notice of Motion to Prohibit Public Access;
- Motion to Prohibit Public Access;

- Brief in Support of Motion to Prohibit Public Access;
- Declaration in Support of Motion to Prohibit Public Access;
- Proposed Findings of Fact, Conclusions of Law, and Order on Motion to Prohibit Public Access; and
- Any exhibits (*you might not have any exhibits*).

Don't serve the Confidential Information Form! You file this form in **Step 3**.

You can use the Declaration of Service by Mail form or the Declaration of Office Service form, depending on how you choose to complete service.

Declaration of Service by Mail

In order to complete service by mail, the person serving the documents must mail copies of the documents to all parties in the case. The person serving the documents must be at least 18 years old.

If serving the State's Attorney by mail, the person mailing the documents must mail them to the State's Attorney's office. Contact information for State's Attorneys in North Dakota is available at ndcourts.gov/court-locations. Click the name of the County for the State's Attorney contact information.

Postage must be first class and pre-paid. The person mailing the documents must complete the Declaration of Service by Mail. Service is complete upon mailing.

- **Top of Form (Caption)**
 - The person who mailed the documents fills in the Caption exactly as the Caption for the Notice of Motion is filled in.
- **Complete Paragraphs 1 through 7 of the Form**
 - The person who mailed the documents fills in paragraphs 1 through 7.
- **Date and Signature**
 - The person who mailed the documents dates and signs the form and completes the lines following their signature.

If more than one party was served, you need a Declaration of Service by Mail completed and signed for each party.

The completed Declaration of Service by Mail is filed with the Clerk of Court in **Step 3**.

Declaration of Office Service

In order to complete office service, the person serving the documents must leave copies of the documents at the office of the party in the case. The person serving the documents must be at least 18 years of age **and** not a party or interested in the criminal case.

If serving the State's Attorney at their office, the person serving the documents must leave the documents in the Office of the State's Attorney for the county in which the original criminal case was filed. Contact information for State's Attorneys in North Dakota is available at ndcourts.gov/court-locations. Click the name of the County for the State's Attorney contact information.

- **Top of Form (Caption)**

- The person who served the documents at the party's office fills in the Caption exactly as the Caption for the Notice of Motion is filled in.

- **Complete Paragraphs 1 through 6 of the Form**

- The person who served the documents at the party's office fills in paragraphs 1 through 6.

- **Date and Signature**

- The person who served the documents at the party's office dates and signs the form and completes the lines following their signature.

If more than one party was served, you need a Declaration of Office Service completed and signed for each party.

The completed Declaration of Office Service is filed with the Clerk of Court in **Step 3**.

STEP 3: You, the Defendant, File the Original, Completed Forms with the Clerk of Court

File the following original, completed forms and any exhibits with the clerk of court where the criminal case is filed:

- Notice of Motion to Prohibit Public Access;
- Motion to Prohibit Public Access;
- Brief in Support of Motion to Prohibit Public Access;
- Declaration in Support of Motion to Prohibit Public Access;

- Proposed Findings of Fact, Conclusions of Law, and Order on Motion to Prohibit Public Access;
- Confidential Information Form;
- Any exhibits (*you might not have any exhibits*); and
- Proof of Service Document – file the document to prove the method of service you chose:
 - Declaration of Service by Mail
 - Declaration of Office Service

If you're required to pay a filing fee and can't afford to pay, complete the Fee Waiver Forms available at ndcourts.gov/legal-self-help/fee-waiver.

File the completed Fee Waiver Forms at the same time you file your Motion documents.

After your Motion is filed with the Clerk of Court, the Clerk forwards your Motion to the Judge or Judicial Referee for review.

STEP 4: Review by the Judge or Judicial Referee

If the Motion *is* Granted

If the Judge or Judicial Referee decides there are reasonable grounds to prohibit public access, the Judge or Judicial Referee signs a Findings of Fact, Conclusions of Law, and Order.

The Clerk of Court is instructed by the Order to restrict remote public access to the electronic case records in the matter and ensure that public search results for the case records displays the words "Internet Access Prohibited under N.D.Sup.Ct.Admin.R 41."

Members of the public still have access to your criminal case records if they request the records in-person at the courthouse.

If the Motion *isn't* Granted

If the Judge or Judicial Referee decides there aren't reasonable grounds to prohibit remote public access, the Judge or Judicial Referee issues an Order denying the motion. The electronic records remain open to remote public access.

State Of North Dakota

In District Court

County Of Cass

East Central Judicial District

The State Of North Dakota,)
Plaintiff,)
vs.)
Alexandrina Katherine Montgomery Reyes)
Defendant.)

Criminal Case No. 09-2024-CR-009876
**Notice Of Motion To Prohibit
Public Access**

To the Above-Named Plaintiff and Other Interested Persons:

- You Are Hereby Given Notice** that the Defendant's Motion to Prohibit Public Access in the above-captioned case(s) will be decided on Briefs unless oral argument or the taking of testimony is timely requested by a party or required by the Court.
- Please Take Further Notice** that you shall have 14 days after service of this Motion upon you within which to serve and file a response or objection to the Court granting the attached Motion. Upon the filing of an Answer, or upon expiration of the time for filing, the Motion is deemed submitted to the Court, unless a party timely requests oral argument or the taking of testimony.

Dated _____.

Defendant Signature

Alexandrina Katherine Montgomery Reyes

Printed Name

4321 Example Avenue, Apartment 27, Fargo, ND 58102

Address

City, State, Zip Code

701-555-0143

/alexandrina.reyes@example.com

Telephone Number

Email Address

State Of North Dakota

County Of Cass

In District Court

East Central **Judicial District**

The State Of North Dakota,)
Plaintiff,)
)
vs.)
)
Alexandrina Katherine Montgomery Reyes)
Defendant.)

Criminal Case No. 09-2024-CR-009876

Motion To Prohibit Public Access

1. The Defendant moves to prohibit remote public access to all of the electronic records in this case under Rule 41, Section 4(a) of the North Dakota Supreme Court Administrative Rules, because there are sufficient grounds to overcome the presumption of openness of court records and allow access to be prohibited.

2. The Defendant further moves to prohibit remote access to the Defendant's electronic case record in this case under Administrative Rule 41, Section 4(a)(7) to serve the interest of justice because the charges against the Defendant were dismissed, or the Defendant was acquitted.

3. This Motion is based on the Brief and Declaration in support of this Motion, which are served and filed with the Motion.

4. The Defendant respectfully requests that this Motion be decided on Briefs under Rule 3.2 of the North Dakota Rules of Court.

Dated _____.

_____	/Alexandrina Katherine Montgomery Reyes
Defendant Signature	Printed Name
4321 Example Avenue, Apartment 27, Fargo, ND 58102	
Address	City, State, Zip Code
701-555-0143 / alexandrina.reyes@example.com	
Telephone Number	Email Address

State Of North Dakota

In District Court

County Of Cass

East Central **Judicial District**

The State Of North Dakota,)
Plaintiff,)
vs.)
Alexandrina Katherine Montgomery Reyes)
Defendant.)

Criminal Case No. 09-2024-CR-009876

**Brief In Support Of Motion To
Prohibit Public Access**

1. The Defendant brings this Motion to ask the court to enter an Order prohibiting remote public access to the electronic record in this case under Rule 41, Section 4(a)(7) of the North Dakota Supreme Court Administrative Rules because there are sufficient grounds to overcome the presumption of openness of court records and allow access to be prohibited.

2. The Defendant further brings this Motion to ask the court to enter an Order prohibiting remote public access to the Defendant's electronic case record in the above-captioned case under Administrative Rule 41, Section 4(a)(7) to serve the interest of justice because the charges against the Defendant were dismissed, or the Defendant was acquitted.

Facts

3. The Defendant in the above-captioned case was charged on April 12, 2024
with Example acquitted charge

(choose one) ☐ the charge(s) against the Defendant was/were dismissed / ☒ the Defendant was acquitted of the charge(s).

4. All other facts are stated in the Declaration in Support of Motion to Prohibit Public Access, which is filed with the Motion to Prohibit Public Access and incorporated by reference.

Law and Argument

5. Rule 41, Section 4(a) of the North Dakota Supreme Court Administrative Rules requires the court to decide whether there are sufficient grounds to overcome the presumption of openness of court records and prohibit access according to applicable law. The court must consider that the presumption of openness may only be overcome by an overriding interest. The court must articulate this interest along with specific findings sufficient to allow a reviewing court to determine whether the closure order was properly entered.

6. When criminal charges against a Defendant are dismissed or the Defendant is acquitted, Rule 41, Section 4(a)(7) of the North Dakota Supreme Court Administrative Rules, allows the court to prohibit remote access to the individual Defendant's electronic case record if, after conducting a balancing analysis and making findings under Rule 41, Section 4(a)(3) of the North Dakota Supreme Court Administrative Rules, the court concludes that the interest of justice will be served.

7. In the above-captioned case(s), the reason for (*choose one*) ☐ dismissal of charges / ☒ acquittal was The court entered an acquittal after trial.

Consequently, the public interest in maintaining remote public access to the electronic record in the above-captioned case(s) is minimal.

8. Because the electronic case record has remained available for remote public access, the Defendant has sustained or is likely to sustain the following harms (*select all that apply*;
Paragraph 8 continues on next page):

- ☐ The risk of injury to individuals;
 - ☒ Individual privacy rights and interests;
 - ☐ Proprietary business information;
 - ☐ Public safety;
 - ☐ Other (*list the harm or harms*): _____
-
-

9. For all harms selected in Paragraph 8, an explanation of how the Defendant has sustained or is likely to sustain each harm is stated in Paragraph 5 of the Declaration in Support of Motion to Prohibit Public Access.

10. Because these harms are substantial, there is an overriding interest in protecting the Defendant from further harm by prohibiting remote public access to the electronic case record in the above-captioned case.

11. An explanation of how prohibiting remote public access to the electronic case record in the above-captioned case will protect the Defendant from further harm is stated in Paragraph 6 of the Declaration in Support of Motion to Prohibit Public Access.

12. Prohibiting remote public access to the electronic case record in the above-captioned case is no broader than necessary to protect the Defendant from further harm because

(*explain; Paragraph 12 continued on next page*): I request the limited remote-access remedy for

this case. I do not request expungement or

sealing, and I understand that the public may

still obtain the records in person at the

courthouse.

(Paragraph 12 continued)

Conclusion

13. Based on the minimal interest in maintaining remote public access in the above-captioned case and the substantial harm the Defendant has sustained or is likely to sustain because remote public access has been allowed, the interest of justice will be served by prohibiting remote public access to Defendant's electronic case record in the above-captioned case.

Dated _____.

Defendant Signature

Alexandrina Katherine Montgomery Reyes

Printed Name

4321 Example Avenue, Apartment 27

Address

Fargo, ND 58102

City, State, Zip Code

701-555-0143

Telephone Number

/alexandrina.reyes@example.com

Email Address

State Of North Dakota

In District Court

County Of Cass

East Central Judicial District

The State Of North Dakota,)
Plaintiff,)
vs.)
Alexandrina Katherine Montgomery Reyes)
Defendant.)

Criminal Case No. 09-2024-CR-009876

**Declaration In Support Of Motion
To Prohibit Public Access**

My name is Alexandrina Katherine Montgomery Reyes. I understand
that I must tell the truth.

1. I am the Defendant in the above-captioned criminal case.

2. I was charged on April 12, 2024 with

Example acquitted charge
_____.

3. On August 20, 2024, (choose one)

☐ the charge(s) against me was/were dismissed / ☒ I was acquitted of the charge(s).

4. The reason for (choose one) ☐ dismissal of charge(s) / ☒ acquittal was

The court entered an acquittal after trial.
_____.

5. Because the electronic case records have remained available for remote public access, I
have sustained or am likely to sustain the following harms (*explain the harm or harms you've
sustained or are likely to sustain. See Paragraphs 8 and 9 of your Brief in Support of Motion;
Paragraph 6 continues on next page*):

I have received repeated unwanted inquiries from people who found the electronic case record. They
continue asking about a charge of which I was acquitted. I want to explain that harm in my own words
rather than have another person supply a statement for me.

6. My request to prohibit remote public access to the electronic case record in the above-captioned case will protect me from further harm because (*explain. See Paragraphs 10 and 11 of your Brief in Support of Motion; Paragraph 6 continues on next page*):

I believe limiting remote access would reduce those inquiries and the resulting loss of privacy. This
request leaves access at the courthouse available. These statements are synthetic facts for a
diagnostic fixture, not a declaration by a real person.

7. I declare, under penalty of perjury under the law of North Dakota, that everything I stated in this Declaration is true and correct.

Signed on _____ (*date*) in _____ (*city*),
_____ (*county*), _____ (*state*), _____ (*country*).

Defendant Signature

Alexandrina Katherine Montgomery Reyes

Printed Name

4321 Example Avenue, Apartment 27

Address

Fargo, ND 58102

City, State, Zip Code

701-555-0143

Telephone Number

alexandrina.reyes@example.com

Email Address

701-555-0143

Telephone Number

alexandrina.reyes@example.com

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State Of North Dakota

County Of Cass

In District Court

East Central **Judicial District**

The State Of North Dakota,)

Plaintiff,)

vs.)

Alexandrina Katherine Montgomery Reyes)

Defendant.)

Criminal Case No. 09-2024-CR-009876

**Findings Of Fact, Conclusions Of Law, And
Order On Motion To Prohibit Public Access**

1. The Defendant submitted a Motion to Prohibit Public Access to the electronic records in the above-captioned case under Rule 41, Section 4(a)(7) of the North Dakota Supreme Court Administrative Rules, on _____. The State of North Dakota responded to the Motion on _____. The Court considered the Motion and decided it on Briefs under Rule 3.2 of the North Dakota Rules of Court.

Findings of Fact

2. The Court finds there are sufficient grounds to overcome the presumption of openness of court records in the above-captioned case to allow remote public access to Defendant's electronic case record to be prohibited.

3. The following specific facts show that public interest in maintaining open remote public access to the electronic case record of the above-captioned case is minimal:

a. _____

b. _____

- c. _____

- d. _____

- e. _____

- f. _____

4. The following specific facts show that the Defendant has sustained or is likely to sustain the following substantial harms because the electronic case record in the above-captioned case has remained available for remote public access:

- a. _____

- b. _____

- c. _____

- d. _____

- e. _____

Conclusions of Law

5. There is an overriding interest in protecting the Defendant from further harm by prohibiting remote public access to the electronic case record in the above-captioned case.
6. There is a minimal interest in maintaining remote public access to the electronic case record in the above-captioned case.
7. The interest of justice will be served by prohibiting remote public access to the electronic case record in the above-captioned case.

Order

8. Based on the above, the clerk of court is ordered to promptly restrict remote public access to the electronic case record in the above-captioned case.
9. The clerk of court is further ordered to ensure that the search result for these records displays the words "Internet Access Prohibited under N.D.Sup.Ct.Admin.R 41."

District Judge

State Of North Dakota

In District Court

County Of Cass

East Central Judicial District

The State Of North Dakota,)
Plaintiff,)
vs)
Alexandrina Katherine Montgomery Reyes)
Defendant.)

Criminal Case No. 09-2024-CR-009876

Confidential Information Form

Full Information

Redacted Information

Defendant:

Name: Alexandrina Katherine Montgomery Reyes

Date of Birth: April 17, 1991

Social Security #: _____

Year of Birth: 1991

XXX-XX-_____

Other Person:

Name: _____

Date of Birth: _____

Social Security #: _____

Year of Birth: _____

XXX-XX-_____

Minor Child:

Name: _____

Date of Birth: _____

Social Security #: _____

Initials: _____

Year of Birth: _____

XXX-XX-_____

Minor Child:

Name: _____

Date of Birth: _____

Social Security #: _____

Initials: _____

Year of Birth: _____

XXX-XX-_____

Minor Child:

Name: _____

Date of Birth: _____

Social Security #: _____

Initials: _____

Year of Birth: _____

XXX-XX-_____

Full Information	Redacted Information
Victim Information:	
Name: _____	Initials: _____
Date of Birth: _____	Year of Birth: _____
Social Security : _____	XXX-XX-_____
(Address) _____	(City, State, Country, Zip Code) _____
(Phone Number) _____	(Email) _____

Financial Account Numbers:

Name of Account: _____	
Account Number: _____	Last 4 Digits: _____
Name of Account: _____	
Account Number: _____	Last 4 Digits: _____
Name of Account: _____	
Account Number: _____	Last 4 Digits: _____
Name of Account: _____	
Account Number: _____	Last 4 Digits: _____

Taxpayer ID Number:

Name: _____	
ID Number: _____	Last 4 Digits: _____

Dated _____.

(Signature)

Alexandrina Katherine Montgomery Reyes

(Printed Name)

4321 Example Avenue, Apartment 27, Fargo, ND 58102

(Address)	(City, State, Zip Code)
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701-555-0143 / alexandrina.reyes@example.com

(Telephone Number)	(Email Address)
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State Of North Dakota

In District Court

County Of Cass

East Central Judicial District

The State Of North Dakota,)
Plaintiff,)
vs)
Alexandrina Katherine Montgomery Reyes)
Defendant.)

Criminal Case No. 09-2024-CR-009876

Declaration Of Service By Mail

(A separate Declaration is required for each person served.)

The person serving court documents by mail states:

1. My name is _____ (name of person who mailed documents).

2. I am at least 18 years of age.

3. **List of Court Documents Served** (each bulleted document is required to be served when making a Motion to Prohibit Public Access to a Defendant's criminal records. If you have documents, such as exhibits, that aren't listed, use "Other" to write the title of each):

- Notice of Motion to Prohibit Public Access
- Motion to Prohibit Public Access
- Brief in Support of Motion to Prohibit Public Access
- Declaration in Support of Motion to Prohibit Public Access
- Proposed Findings of Fact, Conclusions of Law and Order on Motion to Prohibit Public Access
- Other: _____
- Other: _____
- Other: _____

4. **Date of Service by Mail:**

Date Court Documents Were Served by Mail: _____

5. Service by Mail:

As required by Rule 5(b)(3) of the North Dakota Rules of Civil Procedure, I served a true and correct copy of each of the court documents listed in Paragraph 3 by mailing them, enclosed in an envelope, by First-Class mail, postage prepaid, and by depositing them in the United States Mail, directed to the state's attorney for the North Dakota County in which this matter was prosecuted.

6. Person Served by Mail:

Name of State's Attorney: Cass County State's Attorney

Mailing Address: 211 9th Street South

City, State, Zip Code: Fargo, ND 58103

7. I declare, under penalty of perjury under the law of North Dakota, that everything I stated in this Declaration is true and correct.

Signed on _____ (date) in _____ (city),
_____ (county), _____ (state), _____ (country).

(Signature of Person Who Mailed Documents)

(Printed Name)

(Address) (City, State, Zip Code)

(Telephone Number) (Email Address)

State Of North Dakota

In District Court

County Of Cass

East Central Judicial District

The State Of North Dakota,)
Plaintiff,)
vs)
Alexandrina Katherine Montgomery Reyes)
Defendant.)

Criminal Case No. 09-2024-CR-009876

**Declaration Of Service By
Office Service**

(A separate Declaration is required for each person served.)

The person serving court documents at the office states:

1. My name is _____ (name
of person who delivered documents to the office).

2. I am at least 18 years of age. I am **not a party or interested in the above named civil
matter.**

3. **List of Court Documents Served** (each bulleted document is required to be served when
making a Motion to Prohibit Public Access to a Defendant's criminal records. If you have
documents, such as exhibits, that aren't listed, use "Other" to write the title of each):

- Notice of Motion to Prohibit Public Access
- Motion to Prohibit Public Access
- Brief in Support of Motion to Prohibit Public Access
- Affidavit in Support of Motion to Prohibit Public Access
- Proposed Findings of Fact, Conclusions of Law and Order on Motion to Prohibit Public
Access
- Other: _____
- Other: _____
- Other: _____

4. Date, Time, and Address of Office Service:

Date: _____ Time: _____ ☐ a.m. (or) ☐ p.m.

Office Address:

(street address)

(city)

(zip code)

5. Office Service:

As required by Rule 5(b)(3) of the North Dakota Rules of Civil Procedure, I served a true and correct copy of each of the documents listed in Paragraph 3 to the offices of

Cass County State's Attorney (name of state's attorney), the state's attorney for

the North Dakota county in which this matter was prosecuted at the date, time and address

listed in Paragraph 4 by leaving the court documents with _____

(name), who is a person in charge.

6. I declare, under penalty of perjury under the law of North Dakota, that everything I stated in this Declaration is true and correct.

Signed on _____ (date) in _____ (city),

_____ (county), _____ (state), _____ (country).

(Signature of Person Who Served Documents)

(Printed Name)

(Address)

(City, State, Zip Code)

(Telephone Number)

(Email Address)

North Dakota criminal remote-access packet

DIAGNOSTIC / SYNTHETIC REVIEW FIXTURES - DO NOT FILE THESE EXAMPLES.

This packet asks the district court holding the criminal case to restrict remote access after dismissal or acquittal. It does not expunge or seal records. Courthouse access remains; law-enforcement, prosecution and BCI records are unaffected. North Dakota Legal Self Help Center forms are not mandatory court forms and acceptance is not guaranteed.

Stop if there is any conviction in the case; the case is municipal; you expect expungement or sealing; the stronger nonconviction-closing route is available; or the balancing question is contested. Assess the stronger route first. Do not invent a reason why it is unavailable.

Prepare the separate Notice, Motion, Brief, supporting Declaration and proposed Findings/Order. Supply the county, judicial district, case number, defendant name, charge and charging date, disposition and date, reason, contact details and your own harm/protection/scope explanations. Check the actual dismissal or acquittal branch consistently. Supply the dismissal/acquittal record. Never substitute a platform-written argument for your own statement.

The Notice states the response and oral-argument procedure. Consult its original text and Rule 3.2. Leave all findings/order fields below the caption blank for the judge or judicial referee. Personally sign and date the Notice, Motion and Brief; execute the Declaration's perjury and place-of-signing controls yourself when signing. No signature or execution fact is filled by this builder.

Protected information belongs on the Confidential Information Form, not the public documents. Use the protected-information substitutions described on pages 4-5 of the original instructions. Fill applicable confidential sections and execute its signature/date. DO NOT SERVE the Confidential Information Form. It is separately filed confidentially. The diagnostic boundary includes a synthetic birthdate to exercise this conditional branch. Do not treat an unused section as a missing fact.

Serve all parties with the Notice, Motion, Brief, Declaration, proposed Findings/Order and any exhibits. Confirm the prosecutor office and address. Choose mail OR office service; the other declaration is an unselected alternative, not another completed service event. The original instructions require an adult server for mail, and an adult nonparty/noninterested server for office service. The actual server supplies identity, actual recipients, date/time/address and exhibit list, then signs the appropriate declaration after service. Repeat proof for every served party. No future service fact is certified here.

File the originals, applicable exhibits, confidential information form and completed proof of service with the clerk holding the criminal case. Confirm local filing mechanics. No fee amount is asserted; if a filing fee is required and unaffordable, the original instructions direct concurrent fee-waiver forms. Confirm that conditional input before filing. Retain all 13 original instruction pages.

The office-service source contains the original words 'Affidavit in Support' and 'civil matter'. For this criminal packet, serve the current Declaration in Support supplied here; those inherited labels do not require an invented affidavit.

Every unused narrative line is available for continuation. If a held narrative cannot fit all supplied lines at a readable size, this builder stops instead of truncating it. All generated fixtures are review-only; no production route, payment or sponsor permission is opened.

CONFIDENTIAL DIAGNOSTIC: Public identifying reference is year of birth 1991. Full synthetic date of birth is supplied only in the separately filed Confidential Information Form. Do not serve that form.